

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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HAROLD BISHOP,

Index No.: **804748/2023E**

Plaintiff,

AMENDED
VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. JONATHAN J. LLUBERES
P.O. SCOTT FISKE, P.O. ANGEL LOPEZ, P.O. RYAN
JONES and POLICE OFFICERS JOHN DOE III - V, names
being fictitious and meant to designate additional offending
officers, unknowable by Plaintiff, all Individually and in
their official capacities

Defendants.
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Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF HAROLD BISHOP

1. At the time of the commencement of this action, plaintiff HAROLD BISHOP was
and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.
3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and
still is, a Municipal Corporation and body politic, duly formed, organized and existing
under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about September 1, 2022, P.O. JONATHAN J. LLUBERES was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT
6. That on and about September 1, 2022, at approximately 11:30 PM P.O. JONATHAN J. LLUBERES was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about September 1, 2022, P.O. SCOTT FISKE was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT
8. That on and about September 1, 2022, at approximately 11:30 PM P.O. P.O. SCOTT FISKE was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about September 1, 2022, P.O. ANGEL LOPEZ was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT
10. That on and about September 1, 2022, at approximately 11:30 PM P.O. ANGEL LOPEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about September 1, 2022, P.O. RYAN JONES was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT

12. That on and about September 1, 2022, at approximately 11:30 PM P.O. RYAN JONES was working and acting within the scope of his employment as a Police Officer, and under the color of law.

13. That on and about September 1, 2022, POLICE OFFICERS JOHN DOE III - V, whose names are presently unknown to Plaintiff but necessarily know to Defendants by virtue of the events complained of herein, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT

14. That on and about September 1, 2022 at approximately 11:30 P.M., POLICE OFFICERS JOHN DOE III - V were working and acting within the scope of their employment as a Police and Officer[s], and under the color of law.

15. That on October 7, 2022 plaintiff caused a Notice of Claim to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

16. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

17. That on December 19, 2022 the Plaintiff did appear and testify at a General Municipal Law §50h hearing or examination demanded and scheduled by the CITY OF NEW YORK.

18. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

19. At all times herein mentioned, defendant CITY OF NEW YORK was the owner of a Radio Motor Patrol [HEREINAFTER "RMP"] vehicle bearing a License plate or identification number presently unknown by Plaintiff but necessarily known by Defendants by virtue of the facts detailed herein.

20. At all times hereinafter mentioned, defendant P.O. JONATHAN J. LLUBERES operated the aforesaid RMP motor vehicle.

21. At all times hereinafter mentioned, defendant P.O. JONATHAN J. LLUBERES operated the aforesaid RMP motor vehicle with the express consent and permission of the CITY OF NEW YORK.
22. At all times hereinafter mentioned, defendant P.O. JONATHAN J. LLUBERES operated the aforesaid RMP motor vehicle with the implied consent and permission of the CITY OF NEW YORK.
23. At all times hereinafter mentioned, defendant P.O. SCOTT FISKE operated the aforesaid RMP motor vehicle.
24. At all times hereinafter mentioned, defendant P.O. SCOTT FISKE operated the aforesaid RMP motor vehicle with the express consent and permission of the CITY OF NEW YORK.
25. At all times hereinafter mentioned, defendant P.O. SCOTT FISKE operated the aforesaid RMP motor vehicle with the implied consent and permission of the CITY OF NEW YORK
26. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN DOE 1 operated the aforesaid RMP motor vehicle.

27. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN DOE 1 operated the aforesaid RMP motor vehicle with the express consent and permission of the CITY OF NEW YORK.

28. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN DOE 1 operated the aforesaid RMP motor vehicle with the implied consent and permission of the CITY OF NEW YORK.

29. At all times hereinafter mentioned, defendant CITY OF NEW YORK maintained the aforesaid motor vehicle.

30. At all times hereinafter mentioned, defendant P.O. JONATHAN J. LLUBERES maintained the aforesaid motor vehicle.

31. At all times hereinafter mentioned, defendant P.O. SCOTT FISKE maintained the aforesaid motor vehicle.

32. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN DOE 1 maintained the aforesaid motor vehicle.

33. At all times hereinafter mentioned, defendant CITY OF NEW YORK managed the aforesaid motor vehicle.

34. At all times hereinafter mentioned, defendant P.O. JONATHAN J. LLUBERES managed the aforesaid motor vehicle.

35. At all times hereinafter mentioned, defendant P.O. SCOTT FISKE managed the aforesaid motor vehicle.

36. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN DOE 1 managed the aforesaid motor vehicle.

37. At all times hereinafter mentioned, defendant P.O. JONATHAN J. LLUBERES controlled the aforesaid motor vehicle.

38. At all times hereinafter mentioned, defendant P.O. SCOTT FISKE controlled the aforesaid motor vehicle.

39. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN DOE 1 controlled the aforesaid motor vehicle.

40. At all times hereinafter mentioned, plaintiff HAROLD BISHOP was an operator of a Moped and/or motorized scooter.

41. At all times hereinafter mentioned East Gun Hill Road and Burke Avenue were public roadways and/or thoroughfares.

42. At all times hereinafter mentioned Bartholdi Street and Capuchin Way were public roadways and/or thoroughfares.

43. That the operator of the aforesaid RMP did initiate a pursuit of the Moped and/or motorized scooter.

44. That the operator of the aforesaid RMP did initiate a pursuit of the Moped and/or motorized scooter in the vicinity of East Gun Hill Road and Burke Avenue, Bronx NY.
45. That on the first day of September, 2022, in the vicinity of Bartholdi Street and Capuchin Way, Bronx NY, the aforesaid RMP motor vehicle came into contact with HAROLD BISHOP and/or the Moped and/or motorized scooter he was operating.
46. That as a result of the aforesaid contact, plaintiff HAROLD BISHOP was injured.
47. That the aforesaid occurrence was caused by reason of the negligence of the defendants without any fault or negligence on the part of the plaintiff contributing thereto.
48. That defendants were negligent, careless and reckless and acted in a culpable manner in the ownership, operation, maintenance, management and control of their aforesaid motor vehicle; in failing to yield the right of way; in operating said motor vehicle at a fast, dangerous and excessive rate of speed under the conditions then and there prevailing; in improperly accelerating the aforesaid vehicle; in failing to yield the right of way; in failing to see the plaintiff; in failing to see what was there to be seen; in failing to sound the horn; in failing to be observant of the conditions at the aforesaid place; in failing to make any or proper use of the brakes, steering and/or acceleration devices; in failing to make proper use of the transmission and/or gear; in failing to give

any signal, notice or warning; in failing to keep a proper lookout; in failing to observe the traffic conditions and controls at the aforesaid place; in failing to use reasonable care, caution and prudence; in causing the vehicle and scooter to come into contact; in wrongfully, negligently, recklessly, wantonly initiating and fails to reasonably terminate a vehicle pursuit; in violating each and every statute, rule, regulation and ordinance applicable to the conditions then and there prevailing; and in other ways, and in general, being careless, reckless and negligent in the ownership, operation, maintenance, management and control of the aforesaid motor vehicle.

49. That by reason of the foregoing, plaintiff HAROLD BISHOP sustained severe and permanent personal injuries and plaintiff HAROLD BISHOP was otherwise damaged.

50. That, without conceding the necessity of so pleading, plaintiff HAROLD BISHOP sustained serious injures as defined in Subdivision d of §5102 of the Insurance Law-Recodification.

51. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendants' negligence, plaintiff HAROLD BISHOP received great and severe bodily injuries with accompanying physical and mental pain and suffering; that the plaintiff was made sick, sore, lame, and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that

it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that the plaintiff was and will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in the sum which exceeds the jurisdictional limit of all Courts which would otherwise have jurisdiction.

52. That this action falls within one or more of the exceptions as set forth in CPLR §1602 and specifically but not limited to 1602(6).

53. That as a result of the foregoing, the plaintiff HAROLD BISHOP was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF HAROLD BISHOP AND PURSUANT TO 42 USC §1983

54. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 53 as though more fully set forth herein.

55. That immediately proceeding the time and place aforesaid, the Defendants engaged Plaintiff in a pursuit with their RMP vehicle.

56. That the Defendants negligently, recklessly, carelessly and wantonly initiated said pursuit.

57. That the Defendants negligently, recklessly, carelessly and wantonly failed to terminate said pursuit.

58. That the Defendants negligently, recklessly, carelessly and wantonly, during said pursuit, attempted to 'cut off' Plaintiff.

59. That the Defendants intentionally, recklessly, carelessly and wantonly maneuvered said RMP vehicle in such a manner as to cause injury to Plaintiff.

60. That the Defendants negligently, recklessly, carelessly and wantonly maneuvered said RMP vehicle in such a manner as to cause it to strike Plaintiff and/or the motorized scooter he was operating.

61. That the Defendants intentionally, recklessly, carelessly and wantonly maneuvered said RMP vehicle in such a manner as to cause it to strike Plaintiff and/or the motorized scooter he was operating.

62. That the aforesaid maneuver of the Defendants RMP constituted an assault and battery upon Plaintiff.

63. That the aforesaid maneuver of the Defendants RMP constituted a use of excessive, unjustified force upon Plaintiff.

64. That at the time and place aforesaid, after the plaintiff HAROLD BISHOP was improperly assaulted he was issued a summons without privilege, proper authority or justification.

65. That the defendants, their agents, servants and/or employees summonsed the plaintiff HAROLD BISHOP without any basis in law or fact and without reasonable, probable or just cause or justification.

66. That the summons issued to Plaintiff was improperly issued as an ill-fated means of justifying the Defendants own wrongful conduct.

67. That said summons, which were identified as Number 4453308229, Docket 2022SX015641 and Number 4453308232, Docket Number 2022SX015642 in the Criminal Court of the City of New York, Court of Bronx, were dismissed by Judge S. Michels on September 21, 2022 and September 23, 2022, respectively.

68. The Defendants knew or should have known that the information presented to the prosecutors regarding those summons was false, misleading or otherwise improper and said summons and said prosecution was initiated with actual malice.

69. As such, the initiation of those criminal proceedings constituted malicious prosecution.

70. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of wrongly initiating and failing to properly terminate vehicle pursuits, utilizing vehicles as tools to injure and as weapons and repeatedly issuing summons to innocent citizens, and engaging in such policy and procedure without reasonable suspicion and/or individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy quotas, and/or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

71. That said illegal, reckless, careless, wanton and unlawful pursuits, use of excessive force and issuing summons to innocent persons without reasonable suspicion or probable cause are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

72. Said practice and procedures as described above are well evidenced by defendants' own compstat and other statistical tabulations, as well as those of the

district attorney, the civilian complaint review board, the bureau of internal affairs and is well documented in popular publications.

73. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff HAROLD BISHOP of Due Process under Law.

74. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf . That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

75. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq.,

and the named defendants' supervisors, including policy makers, by policy, institutionalized procedure and act, deprived the plaintiff HAROLD BISHOP of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment and the 14th Amendments rights to due process and equal protections under law, and as applicable under Title 42 U.S.C. 1983, et seq.

76. That no negligence or actions on the part of the plaintiff HAROLD BISHOP contributed to the occurrences alleged herein in any manner whatsoever.

77. That this action falls within one or more of the exceptions as set forth in CPLR §1602 and specifically but not limited to 1602(6).

78. That as a result of the foregoing, the plaintiff HAROLD BISHOP was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF HAROLD BISHOP

79. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 78 as though more fully set forth herein.

80. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

81. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful pursuits and summoning of individuals and in the proper use of force.

82. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence and conduct detailed herein, plaintiff HAROLD BISHOP was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff

and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

83. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second and Third Causes of Action, and inclusive of punitive damages as applicable to the individuals named and unnamed, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
NOVEMBER 29 , 2023



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff
HAROLD BISHOP
888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

NYC Law Dept. & P.O. JONATHAN J. LLUBERES via NYSCEF
P.O. SCOTT FISKE, Shield 13610; P.O. ANGEL D. LOPEZ, Shield 18149; P.O. RYAN
JONES, Shield 5095, all of the 47th Precinct, 4111 Laconia Avenue
Bronx NY 10466

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

HAROLD BISHOP

I have read the annexed

AMENDED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is presently outside of the county wherein your affirmant maintains his office.

DATED: Bronx, N.Y.

NOVEMBER 29, 2023



JONATHAN L. GLEIT, ESQ